

STATE OF NEW YORK

8962--A

2025-2026 Regular Sessions

IN ASSEMBLY

August 13, 2025

Introduced by M. of A. ROZIC -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the civil rights law, in relation to enacting the "New York fundamental artificial intelligence requirements in (FAIR) news act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Short title. This act shall be known and may be cited as the "New York fundamental artificial intelligence requirements in (FAIR) news act".

§ 2. The general business law is amended by adding a new article 42-a to read as follows:

ARTICLE 42-A

ARTIFICIAL INTELLIGENCE IN NEWS MEDIA

Section 1150. Legislative intent.

1151. Definitions.

1152. Disclosure to news media workers.

1153. Disclosure to consumers.

1154. Oversight of artificial intelligence systems.

1155. Workplace protections.

§ 1150. Legislative intent. The legislature hereby finds that:

1. New York is the center of the American news industry and journalists are a key part of the state's workforce.

2. Artificial intelligence can quickly generate articles, summaries, news scripts, audio/visual and other media content that may seem professionally done to a lay observer. However, there is ample evidence that content created by generative artificial intelligence: (a) contains false or misleading content; and (b) plagiarizes by deriving its content from original source material without permission or proper citation.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 These failures are a disservice to the public who relies on the news for
2 accurate information about the world.

3 3. As such, the government has a strong interest in the preservation
4 of human news work. There is an urgent need to prevent news companies
5 from using artificial intelligence at the expense of both the broader
6 public and of news workers, including human reporters, editors, news
7 writers, directors, producers, voice actors, graphic designers and other
8 newsroom professionals.

9 4. It is therefore the intent of the legislature to establish clear,
10 meaningful protections for both journalists and the broader public to
11 ensure that the integrity of the news and its workforce are safeguarded.

12 § 1151. Definitions. For the purposes of this article, the following
13 terms shall have the following meanings:

14 1. "Artificial intelligence", "artificial intelligence technology", or
15 "AI" means a machine-based system that can, for a given set of human-de-
16 defined objectives, make predictions, recommendations, or decisions influ-
17 encing real or virtual environments, and that uses machine- and human-
18 based inputs to perceive real and virtual environments, abstract such
19 perceptions into models through analysis in an automated manner, and use
20 model inference to formulate options for information or action.

21 2. "Automated employment decision-making tool" shall mean any software
22 that uses algorithms, computational models, or artificial intelligence
23 techniques, or a combination thereof, to materially automate or replace
24 human decision-making regarding employment, including but not limited to
25 wages and other compensation, hiring, selection for recruitment, disci-
26 pline, promotion, and termination. "Automated employment decision-making
27 tool" shall not include any software used primarily for basic computer-
28 ized processes, such as calculators, spellcheck tools, autocorrect func-
29 tions, spreadsheets, electronic communications, or any tool that relates
30 only to internal management affairs such as ordering office supplies or
31 processing payments, and that do not materially affect the rights,
32 liberties, benefits, safety or welfare of any individual within the
33 state.

34 3. "Generative artificial intelligence" means a class of artificial
35 intelligence models that are self-supervised and emulate the structure
36 and characteristics of input data to generate derived synthetic content,
37 including, but not limited to, images, videos, audio, text, and other
38 digital content.

39 4. "News media" shall mean any publication or programming, regardless
40 of the medium or method of distribution, that provides news, weather,
41 traffic, sports, or entertainment reports or programming. This includes
42 but is not limited to newspapers, magazines, journals, periodicals,
43 websites, newsletters, television or cable programming, radio or podcast
44 programming, and internet or satellite-based content.

45 § 1152. Disclosure to news media workers. News media employers shall
46 fully disclose to workers when and how any generative artificial intel-
47 ligence tool is used in the workplace as it relates to the creation of
48 content, including, but not limited to, writing, recordings and tran-
49 scripts. Such disclosure shall include a description of the artificial
50 intelligence system and a summary of the purpose and use of such system.

51 § 1153. Disclosure to consumers. Any news media content published,
52 broadcast, or otherwise disseminated or accessible within the state of
53 New York, which was substantially composed, authored, or otherwise
54 created through the use of generative artificial intelligence shall
55 conspicuously imprint on the top of the page, webpage, image, graphic,
56 video or other visual or audio/visual content, or verbally orate at the

1 onset of audio content, that such content was substantially created by
2 generative artificial intelligence. If the content is eligible for copy-
3 right registration such disclosure requirement shall not apply.

4 § 1154. Oversight of artificial intelligence systems. Any news media
5 content, including stories, articles, audio, visuals or images, which
6 are created in whole or in material part by generative artificial intel-
7 ligence shall be reviewed by a human worker who has the authority to
8 approve, deny, or modify any decision recommended or made by the auto-
9 mated system before such content may be published with the disclosure
10 under section eleven hundred fifty-three of this article.

11 § 1155. Workplace protections. 1. News media employers shall not
12 directly or through a third party authorize the training of a generative
13 artificial intelligence system on the work product of a news media work-
14 er without notice, consent and an opportunity to bargain over appropri-
15 ate remuneration. A news media employer shall not penalize a news media
16 worker for declining to consent to allow their work product to be used
17 to train a generative artificial intelligence system.

18 2. (a) The use of generative artificial intelligence or automated
19 employment decision-making tools shall not diminish (i) the existing
20 rights of employees pursuant to an existing collective bargaining agree-
21 ment; or (ii) the existing representational relationships among employee
22 organizations or the bargaining relationships between the employer and
23 an employee organization.

24 (b) The use of generative artificial intelligence systems shall not
25 result in: (i) discharge, displacement or loss of position, including
26 partial displacement such as a reduction in the hours of non-overtime
27 work, wages, or employment benefits, or result in the impairment of
28 existing collective bargaining agreements; or (ii) transfer of existing
29 duties and functions previously performed by employees or workers.

30 § 3. Section 79-h of the civil rights law is amended by adding a new
31 subdivision (h) to read as follows:

32 (h) Employers of professional journalists and newscasters shall estab-
33 lish safeguards to protect journalistic sources and confidential materi-
34 als gathered through location tracking, surveillance or any other means,
35 which can be accessed by any artificial intelligence technology, as
36 defined by section eleven hundred fifty-one of the general business law.

37 § 4. Severability clause. If any clause, sentence, paragraph, subdivi-
38 sion or section of this act shall be adjudged by any court of competent
39 jurisdiction to be invalid, such judgment shall not affect, impair, or
40 invalidate the remainder thereof, but shall be confined in its operation
41 to the clause, sentence, paragraph, subdivision or section thereof
42 directly involved in the controversy in which such judgment shall have
43 been rendered. It is hereby declared to be the intent of the legislature
44 that this act would have been enacted even if such invalid provisions
45 had not been included herein.

46 § 5. This act shall take effect on the sixtieth day after it shall
47 have become a law.